



Unit 1: Foundations of American Democracy 15-20% of exam

Key Vocabulary

- ▶ Government: the institutions and processes through which public policies are made for society
- ▶ Politics: the way groups of people make decisions, share power, and manage resources as a society
- ▶ Natural rights: rights given to everyone in a state of nature before governments arise
- ▶ Social contract: a form of government where the people consent to being governed by a sovereign
- ▶ Republicanism: the power resides in the people, who elect representatives to govern them

Key Vocabulary (Continued)

- ▶ Democratic theory: democracy is a form of government that places ultimate political authority in the hands of people
 - ▶ Direct democracy: citizens debate and vote directly on laws
 - ▶ Representative democracy: people elect representatives to govern them and to make laws and set policies; essentially an indirect democracy
- ▶ Elite theory: a relatively small, cohesive elite class makes all important decisions rather than the will of the people
- ▶ Pluralist theory: the argument that representative democracies are based on group interest that protect the individual's interest by representing him/her to the government
- ▶ Federalism: a system of government that divides power between a central government and the states

Key Documents

- ▶ Declaration of Independence
- ▶ Articles of Confederation
- ▶ Gettysburg Address
- ▶ Federalist No. 10
- ▶ Federalist No. 51
- ▶ Brutus No. 1
- ▶ The United States Constitution
- ▶ Marbury v. Madison
- ▶ Federalist No. 39
- ▶ McCulloch v. Maryland
- ▶ United States v. Lopez

Disclaimer

The following slides simply *summarize* the key documents in the AP® United States Government and Politics curriculum. You should *always* read the actual documents for more specific details and facts, using the slides/notes as a supplementary guide.

Declaration of Independence

- ▶ Paragraph 1 → reasons for severing ties to British rule
- ▶ Paragraph 2 → colonists' belief of the fundamental purpose of government → *inalienable rights* of “life, liberty, and the pursuit of happiness.”
- ▶ Paragraphs 3-29 → colonists' grievances towards King George III, who ruled over them → common grievances include standing army, taxation without consent, cutting of trade with rest of the world
- ▶ Paragraphs 30-32 → concluding paragraphs declaring the united colonies free from British rule and allegiance to the British crown → signers pledge their lives, fortune, and sacred honor in support of the Declaration.

Key Takeaways

- ▶ Declaration of Independence paid homage to Enlightenment ideals.
 - ▶ “Life, liberty, pursuit of happiness” and social contract theory *heavily inspired* by John Locke’s works
- ▶ Separated American ties to British rule
- ▶ Established a new form of *republican* government: one that derives its powers from the consent of the people

MCQ Practice

The Declaration of Independence cites specific reasons for separating from British rule, including the British imposing taxes and maintaining a standing army without consent. Which of the following principles or ideas would these grievances be most related to?

- (A) Natural rights such as life, liberty, and property.
- (B) The authority to create a centralized military among the colonies.
- (C) The incorporation of checks and balances among the branches of government.
- (D) Concurrent powers allowing the colonies to draft their own laws.



Articles of Confederation

- ▶ Drafted after Declaration of Independence and came into force in 1781
- ▶ First body of law for the newly formed nation
- ▶ Purpose was to preserve the independence and sovereignty of the thirteen states
- ▶ SUMMARY:
 - ▶ Article I: Named the country as “The United States of America.”
 - ▶ Article II: Provides that states retain sovereignty not delegated to the national government.
 - ▶ Article III: Creates a “league of friendship” between states for defense and security.
 - ▶ Article IV: Protects equal treatment and freedom of movement for citizens.
 - ▶ Article V: Allocates one vote in Congress for each state.
 - ▶ Article VI: Gives the national government the power to declare war.
 - ▶ Article VII: Gives states the power to assign military ranks.
 - ▶ Article VIII: Expenditures by the United States will be paid with funds raised by state legislatures.

Articles of Confederation

► SUMMARY

- Article IX: Gives Congress the power to declare war and peace, appoint tribunals for crimes on the seas, regulate the post office, appoint a president, and request regulations from states. Nine states are required to consent to declare war.
- Article X: Allows a “committee of the states” to exercise the powers of Congress when Congress is not in session.
- Article XI: Provides that Canada may join the Union.
- Article XII: Provides that the Confederation accept the war debt.
- Article XIII: Provides that amendments require the approval of all thirteen states.

Key Takeaways

► PROS

- Provides significant freedom to states, preventing them from being under the rule of a tyrannical government.
- Each state is given equal representation in Congress, with one vote per state, honoring the founding principle that “all men are created equal.”

► CONS

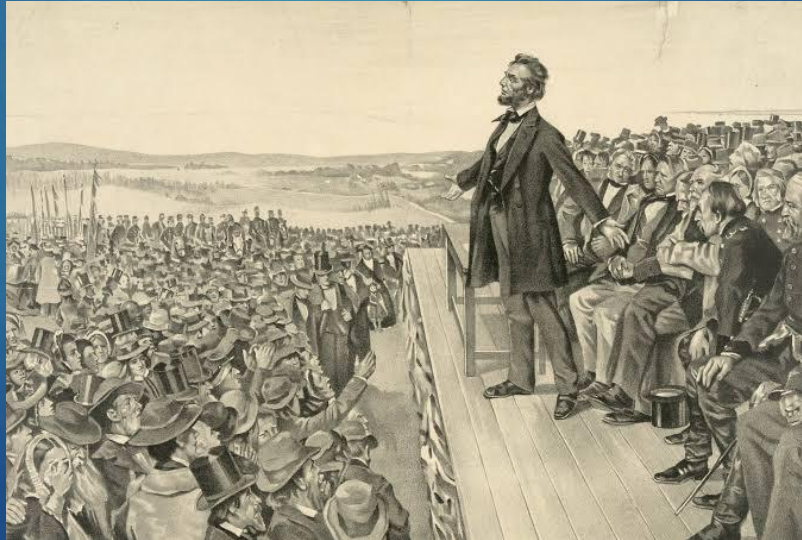
- Does not allow Congress to collect taxes, meaning government cannot be funded easily.
- No executive power to enforce laws passed by Congress.
- Changing the Articles of Confederation requires the consent of all 13 states (which is nearly impossible to achieve).

• WHY DID THE ARTICLES OF CONFEDERATION FAIL?

- Created a *weak* central government that was unable to collect taxes or force states to pay off its debts from the Revolutionary War.
- No federal power (a.k.a. a president) to enforce laws passed by Congress or a federal court system to handle disputes between states.
- Changing the Articles of Confederation was nearly *impossible*, requiring the approval of all thirteen states.

The Gettysburg Address

- ▶ Nearly a century later, during the midst of the Civil War, Abraham Lincoln delivered a speech that tied the Union's battle back to our nation's founding ideals...



The Gettysburg Address

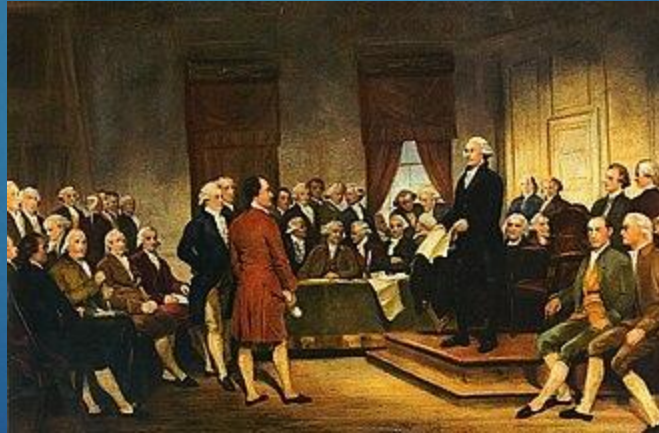
- ▶ Delivered to dedicate a military cemetery for Union soldiers during the Civil War.
- ▶ In the address, Lincoln alludes to the Declaration of Independence's ideals of a nation where *all men are created equal*.
- ▶ Described the Civil War as a *test* of whether a nation founded on and dedicated to these ideals would survive.
- ▶ Called for a “new birth of freedom.”
- ▶ “The government of the people, by the people, for the people, shall not perish from the earth.”

Key Takeaways

- ▶ The Gettysburg Address demonstrates the foundational ideals in the Declaration of Independence being put to the test.
- ▶ Lincoln reminds the audience of the ideals the nation was founded on, and advocates fighting for them.

The Federalists vs. The Anti-Federalists

- ▶ Dissatisfaction with the Articles of Confederation led to a strong desire for reform within the American government...



Federalist No. 10

- ▶ James Madison describes the problem of *faction*.
 - ▶ A faction is an organized political group that opposes the rights of other citizens.
 - ▶ Can lead to *majoritarianism* (one faction with a majority dominates and suppresses others)
- ▶ How to “cure” factions?
 - ▶ Removing liberty (“the air to the fire”)
 - ▶ Make everyone have the same interests, passions, and motives.
- ▶ The methods described above for curing factions are *impossible* and *impractical* in a nation where everyone is entitled to natural rights.

Federalist No. 10

- ▶ Madison's solution?

A large federal republic!

- ▶ WHY?
 - ▶ A large federal republic allows for a *variety* of political interests and factions, which prevents one faction from becoming too strong.

Federalist No. 51

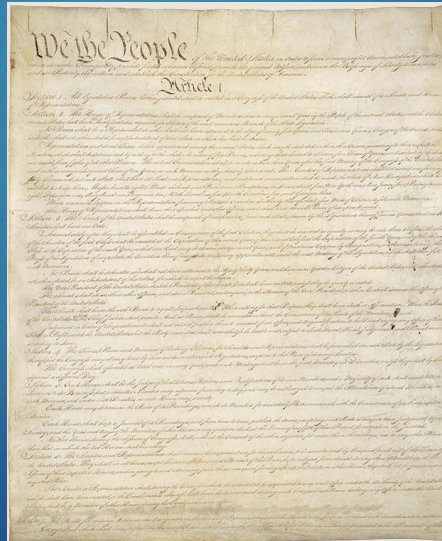
- ▶ James Madison argues for a stronger federal government.
 - ▶ If all humans were “angels”, there would be no need for government.
 - ▶ If humans were governed by “angels”, there would be no need for a system of *checks and balances*.
- ▶ Madison proposes *separation of powers* and *checks and balances*.
 - ▶ Legislative, judicial, and executive branches
 - ▶ Each branch imposes limits on one another if a branch becomes too powerful.
 - ▶ Legislative branch is *inherently* predominant, requiring additional limits.

Brutus No. 1

- ▶ Author acknowledges limitations of Articles of Confederation
- ▶ But... the Constitution is NOT the solution to these limitations.
- ▶ In a large nation, the Constitutional republic cannot represent the interests of its people.
- ▶ Necessary and proper clause
 - ▶ Allows federal government to exercise unprecedented power over states and citizens.
- ▶ Commerce clause
 - ▶ Destroys state sovereignty and gives central government unprecedented power.

The Constitution

- ▶ The Federalists were triumphant, albeit with several compromises made to appeal to the Anti-Federalists...



The Constitution

- ▶ Article I: Creates a bicameral legislature, establishes requirements for serving in the House of Representatives and Senate, lists expressed powers of Congress, and allows for implied powers (*necessary and proper clause*).
- ▶ Article II: Creates the presidency, establishes requirements for office, lists the expressed powers of the executive.
- ▶ Article III: Creates a Supreme Court and provides that Congress may establish lower federal courts.
- ▶ Article IV: Sets forth the relationship between states.
- ▶ Article V: Establishes the process for amending the Constitution.

The Constitution

- ▶ Article VI: Establishes that the Constitution, federal laws, and treaties are the supreme law of the land (*supremacy clause*)
- ▶ Article VII: Describes how the Constitution will be ratified.

Constitutional Amendments

- ▶ Below are key amendments to the United States Constitution you MUST know about for the AP® exam.
 - ▶ Amendment I: Congress cannot make any laws restricting freedom of speech or press.
 - ▶ Amendment II: The right for a “well regulated militia” to bear arms shall not be infringed.
 - ▶ Amendment IV: People are protected from unreasonable searches and seizures by the government.
 - ▶ Amendment X: Grants states powers not explicitly prohibited by the Constitution or exclusively reserved for the federal government.

Constitutional Amendments

- ▶ Amendment XIII: Abolished slavery and involuntary servitude nationwide except as a punishment for crime.
- ▶ Amendment XIV: Defined national citizenship and provided each person equal protection under the law.
- ▶ Amendment XIX: Guarantees that the right to vote in the United States cannot be denied on account of sex.
- ▶ Amendment XXII: Limits an elected president to two presidential terms.
- ▶ Amendment XXV: Sets the rules for presidential succession and disability.

MCQ Practice

Which of the following is a correct comparison between the United States Constitution and the Articles of Confederation?

	United States Constitution	Articles of Confederation
(A)	Favored strong national government	Favored a federal system
(B)	Granted Congress the power to levy taxes	Granted states alone the power to levy taxes
(C)	Required approval by three-fourths of Congress for a constitutional amendment	Required unanimity of Congress to amend
(D)	Granted Congress the power to declare war	Granted Congress the power to regulate trade



Federalist No. 39

- ▶ The Constitution establishes a *republic* because the people elect representatives to create and administer laws.
- ▶ The Constitution establishes both a *federal* and *national* government.
 - ▶ Ratification of the Constitution is dependent on three-fourths of state legislatures approving it → *federal*
 - ▶ House of Representatives are directly elected by the people → *national*

Unit 1 SCOTUS cases

MARBURY V. MADISON, MCCULLOCH V. MARYLAND, UNITED STATES V.
LOPEZ

Marbury v. Madison

- ▶ **Facts of the case:** Marbury attempted to sue SCOTUS into delivering his commission, which Thomas Jefferson instructed his Secretary of State James Madison *not* to hand it over.
- ▶ **Holding:** SCOTUS ruled that although Marbury had a legal right to the commission, the Judiciary Act that Marbury utilized for the case was *unconstitutional* because it expanded the court's original jurisdiction beyond what Article III of the Constitution allowed.
- ▶ **Significance:** Because the ruling declared an act of Congress void, the case established the principle of *judiciary review*.

McCulloch v. Maryland

- ▶ **Facts of the case:** Congress chartered the Second Bank of the United States in 1816. In 1818, Maryland passed legislation to tax the bank. James McCulloch, the cashier of the Baltimore branch of the bank, refused to pay the taxes. Maryland's appeals court asserted that the Second Bank was unconstitutional because the Constitution did not *explicitly* allow the federal government to charter a bank.
- ▶ **Holding:** SCOTUS unanimously ruled that Maryland could not tax the bank because it was an asset of the national government used to execute constitutional powers outlined in the *necessary and proper clause*. Because the Constitution grants the government the power to tax and declare war, Congress has an *implied power* to charter a bank.
- ▶ **Significance:** The case allowed the national government to exercise implied powers that were supreme over state laws.

United States v. Lopez

- ▶ **Facts of the case:** Alfonzo Lopez, a high school senior in San Antonio, TX, carried a concealed weapon on campus. Federal agents charged Lopez for violating the Gun Free School Zones Act of 1990, which forbids firearm possession on school property.
- ▶ **Holding:** SCOTUS ruled in favor of Lopez because in *Jones & Laughlin Steel*, the Court already warned about the limitations of the Commerce Clause. The Gun Free School Zones Act was *not* related to interstate commerce. If the act were to be upheld, Congress could become tyrannical as they could regulate *all activities that could lead to violent crime*, regardless of their relation to interstate commerce.

United States v. Lopez

- ▶ **Dissenting opinions:** The presence of guns in schools has been statistically proven to undermine education. Because global competition has increased the importance of education, the presence of guns has a chain effect on commerce in the form of decreased education and therefore worker productivity.
- ▶ **Significance:** This case limits Congressional power under the Commerce Clause such that the clause cannot be extended to non-economic and local activities solely due to indirect effects on the national economy. It also reinforced the Tenth Amendment, which limits the power of the federal government.



MCQ Practice

The case *United States v. Lopez* (1995) struck down the Gun-Free School Zones Act because

- (A) It violated Fourth Amendment protections against unwarranted searches.
- (B) Congress exceeded its authority in the use of the commerce clause.
- (C) The Second Amendment is a right incorporated to the states.
- (D) Students retain their First Amendment rights while attending schools.

